

Court No. - 21

Case :- WRIT - C No. - 4720 of 2023

Petitioner :- Ramswaroop Kushwaha

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ram Surat Patel

Counsel for Respondent :- C.S.C.,Jai Krishna Upadhyay

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

As prayed on behalf of learned counsel for the petitioner, list as fresh on 22.02.2023.

Order Date :- 9.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

Ms. Arti Raje, Advocate has appeared on behalf of the respondent nos. 2 & 3. She prays for and is granted a week's time to obtain instructions and satisfy the Court how the provisional assessment was sent to the petitioner; the date fixed for hearing and also how order of final assessment was communicated to him.

Put up this matter as fresh on 1.3.2023.

When the case is next listed, name of Ms. Arti Raje shall be shown as counsel for the respondents.

Order Date :- 22.2.2023

Arif

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)

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Counsel for Petitioner :- Ram Surat Patel

Counsel for Respondent :- C.S.C.,Arti Raje,Jai Krishna Upadhyay

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Ms. Arti Raje, learned counsel for the respondent Corporation has received instructions from the Executive Engineer, according to which, provisional assessment order dated 17.05.2022 was dispatched to the petitioner by registered post on 18.05.2022 fixing 31.05.2022 as date for hearing.

The law requires that fifteen days clear notice has to be given to the assessee for filing reply, which provision has not been complied with.

We require the Executive Engineer to file his personal affidavit and explain why the procedure prescribed under the Electricity Supply Code, 2005 has not been followed and why this Court should not recommend for appropriate action being taken against him.

Put up as fresh on 15.03.2023.

Ms. Arti Raje shall communicate the instant order to respondent no.2 for due compliance.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.3.2023

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Petitioner :- Ramswaroop Kushwaha

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ram Surat Patel

Counsel for Respondent :- C.S.C., Arti Raje, Jai Krishna Upadhyay

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has prayed for quashing of the demand notice dated 28.7.2022 issued by respondent no. 3. to the petitioner in a case of theft of electricity.

The personal affidavit of respondent no. 3 has been filed in compliance of our previous order dated 1.3.2023.

Ms. Arti Rate, learned counsel for the respondent Electricity Department, states that the impugned demand notice has been withdrawn and that the respondents will pass a fresh order after providing opportunity of hearing to the petitioner.

Having regard to the above stand, we are of the opinion that no further direction is required to be issued in the instant case, except for liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Jaideep/-